

SANCHEZ v SENDER'S MARKET, INC., et al

24CV47302

**PLAINTIFF'S MOTION FOR LEAVE
TO FILE AMENDED COMPLAINT**

This is a breach of contract claim brought by Cynthia Sanchez ("Sanchez") against Slakey Brothers ("Slakey"), Sender's Market ("Market") and Roth Industries, Inc. ("Roth.")

Now before the Court is Sanchez's motion for leave to file a First Amended Complaint ("FAC.") Slakey and Roth have both filed oppositions.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Despite the failure to comply with local rules, in the interest of judicial efficiency, the Court will consider the substance of the motion.

I. Relevant Facts and Procedural History

Sanchez filed her Complaint for breach of contract, breach of warranty, and negligence on April 5, 2024. In her Complaint, Sanchez alleges that on or about October 20, 2021, she purchased three Roth ISO-gallon potable water storage tanks from Market. (Complaint ¶ 8.) Market contacted Slakey to complete the order, and Slakey in turn ordered the tanks from Roth. (*Id.* ¶¶ 9, 10.) Sanchez received a written purchase order dated April 2022 (the “Agreement.”) (*Id.* ¶ 11.) Installation of the tanks took place in September and October of 2022. (*Id.* ¶ 12.)

In January of 2023, Sanchez took a sample of water to a testing facility and on February 16, 2023, she learned that the water sample had Tetrachloroethene, a known carcinogen. (Complaint ¶ 13.) The tanks are filled with water from wells and testing of the wells showed no presence of contaminants – however the bottom of the tanks did. (*Id.* ¶¶ 14, 15.)

On or about April 2023, representatives for Slakey and Roth came to the property, confirmed the presence of the contaminants, and posited possible sources for the contamination that could have come from Sanchez’s property. (Complaint ¶¶ 17, 18.) Sanchez alleges that she, her husband Jerry Jerstad (“Jerstad”) and her pets have all become ill since the installation of the tanks and seeks damages.

II. Legal Standard

When a party moves to amend a pleading, “courts generally should permit amendment to the complaint at any stage of the proceedings, up to and including trial. [Citations.]” (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175.) Leave to amend should be granted liberally. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489.) In ruling on such motion, the Court’s main concern is prejudice to another party. (*Ibid.*) Prejudice means more than inconvenience, but instead focuses on delay in trial, loss of critical evidence or added costs of preparation. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) The motion must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

In ruling on a motion for leave to amend, courts generally do not consider the amended pleading's merits. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

III. Discussion

Sanchez seeks to amend her Complaint to add additional facts, seek additional damages, and to add Jerstad as a Plaintiff. Roth and Slakey oppose the motion on the grounds that there was an inexcusable delay in seeking amendment, the amendment is barred by the statute of limitations, and allowing amendment at this point will severely prejudice the defendants.

Sanchez asks the Court to grant her leave to amend her complaint sixteen months after it was filed on the grounds that "facts have been developed over time since the filing of the original Complaint" and to add facts that "have been uncovered through discovery and investigation." (Declaration of Peter Winkler ("Winkler Decl.") ¶¶ 4, 5.) Mr. Winkler's declaration is inadequate to meet the standard required to allow amendment, particularly in light of the potential prejudice from the unexplained delay. The declaration fails to state what new facts were learned, when they were learned, and why the motion was not brought sooner. (See e.g. *Reason v. Reason* (1999) 73 Cal.App.4th 472.)

The Court is, however, cognizant of the strong preference for cases to be decided on their merits. Accordingly, leave to amend is **DENIED, but without prejudice.**

Sanchez's counsel is admonished to review the requirements of Rule 3.1324 before any further motions for leave to amend are filed. Additionally, as noted above, at this procedural stage the Court's decision is without consideration of the proposed pleading's merits; however, the Court notes that (as the contention was raised in the opposition) it appears there is a definite likelihood of the Court ultimately determining that the addition of Jerstad as a plaintiff may well be barred by the statute of limitations and urges counsel to meet and confer to determine if a stipulation to file a Third Amended Complaint (3AC) that avoids future further motions may be appropriate.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

10:00 a.m. CALENDAR

MATTER OF PRESTON

20PR8275

SUCCESSOR ADMINISTRATOR'S MOTION FOR EXTRAORDINARY ATTORNEY'S FEES

Now before the Court is a Petition for Extraordinary Fees brought by Chad Preston ("Petitioner") as Successor Administrator of the Estate of Gregg Hall Preston ("Estate.") Petitioner seeks an order approving extraordinary compensation as follows: 1) \$148,701.22 for attorney's fees, and 2) \$1,150.25 in travel fees related to Petitioner attending trial.

There is no opposition on file.

I. Legal Standard

Probate Code section 10811 authorizes the court, in its discretion, to allow compensation to the attorney for the personal representative for extraordinary services, in addition to the statutory compensation provided by section 10810, in an amount the court determines is just and reasonable. (Prob. Code, § 10811, subd. (a).) A parallel provision, section 10801, governs extraordinary compensation to the personal representative. The award of extraordinary compensation rests within the sound discretion of the trial court. (*Est. of Gilikson* (1998) 65 Cal.App.4th 1443, 1448; California Rules of Court rule 7.703(a).)

California Rule of Court rule 7.303(b) sets forth a nonexclusive list of activities for which extraordinary compensation may be awarded to the attorney for the personal representative. These include "litigation undertaken to benefit the estate or to protect its interests" (subd.(b)(3)), "extraordinary efforts to locate estate assets" (subd. (b) (8)), and "coordination of ancillary administration" (subd (b)(10).)

Pursuant to California Rule of Court rule 7.702, a petition for extraordinary compensation must include, or be accompanied by, a statement of the facts which must:

- (1) Show the nature and difficulty of the tasks performed;
- (2) Show the results achieved;